

**Intermodal Motor Carriers Conference, et al.**

**v.**

**Ocean Carrier Equipment Management Association, Inc., et al.**

**FMC Docket No. 20-14**

**SUPPLEMENTAL APPENDIX TO RESPONDENTS' REPLY  
MEMORANDUM OF LAW IN FURTHER SUPPORT OF THEIR MOTION FOR  
SUMMARY JUDGMENT AND RESPONSE TO COMPLAINANT'S  
SUPPLEMENTAL STATEMENT OF UNDISPUTED MATERIAL FACTS**

**Public - Unrestricted**

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,  
OCEAN NETWORK EXPRESS PTE. LTD., WAN HAI  
LINES LTD., YANG MING MARINE TRANSPORT  
CORP., AND ZIM INTEGRATED SHIPPING  
SERVICES,

Respondents.

FMC Docket No. 20-14

**SUPPLEMENTAL APPENDIX TO RESPONDENTS' REPLY**  
**MEMORANDUM OF LAW IN FURTHER SUPPORT OF THEIR MOTION FOR**  
**SUMMARY JUDGMENT AND RESPONSE TO COMPLAINANT'S**  
**SUPPLEMENTAL STATEMENT OF UNDISPUTED MATERIAL FACTS**

Pursuant to paragraph 17 of the Initial Order dated July 30, 2020 issued by Chief Administrative Law Judge Erin M. Wirth, the Respondents, Ocean Carrier Equipment Management Association, Inc. ("OCEMA"), Consolidated Chassis Management, LLC ("CCM"), CMA CGM S.A. ("CMA"), COSCO Shipping Lines Co. Ltd. ("COSCO"), Evergreen Line Joint Service Agreement, FMC No. 011982 ("Evergreen"), Hapag-Lloyd AG ("Hapag-Lloyd"), HMM Co. Ltd. ("HMM"), Maersk A/S ("Maersk"), MSC Mediterranean Shipping Company S.A. ("MSC"), Ocean Network Express Pte. Ltd. ("ONE"), Wan Hai Lines Ltd. ("Wan Hai"), Yang Ming Marine Transport Corp. ("Yang Ming"), and ZIM Integrated Shipping Services ("ZIM")

(collectively, “Respondents”) respectfully submit the following Reply Memorandum of Law in Further Support of Their Motion for Summary Judgment and Response to Complainant’s Supplemental Statement of Material Facts.

**SUPPLEMENTAL APPENDIX**

1. Document bearing Bates Stamp IMCC\_00025114
2. Chris Giltz Deposition (selected pages)
3. Michael Wilson Deposition (selected pages)
4. David Manning Deposition (selected pages)
5. Scott George Deposition (selected pages)
6. Dr. James Reitzes Deposition (selected pages)

Respectfully submitted,

COZEN O'CONNOR

HOLLAND & KNIGHT

By: /s/ Christopher Raleigh

By: /s/ Gerald Morrissey

Counsel for Respondents<sup>1</sup>  
Wayne R. Rohde  
Christopher Raleigh  
Kathryn Sobotta  
1200 19<sup>th</sup> Street N.W., Suite #300  
Washington, D.C. 20036  
(202) 463-2507

Counsel for Respondent Hapag-Lloyd AG  
Gerald Morrissey  
Christopher Nolan  
800 17<sup>th</sup> Street N.W., Suite 1100  
Washington, D.C. 20006  
(202) 469-5497

Mark A. Rabinowitz  
123 N. Wacker Drive, Suite 1800  
Chicago, IL 60606  
(312) 382-3150

MANELLI SELTER PLLC

By: /s/Deana Rose

Counsel for Respondent Yang Ming  
Marine Transport Corporation  
Deana E. Rose  
1725 I Street NW.  
Suite 300  
Washington, D.C. 20006  
(202) 261-1016

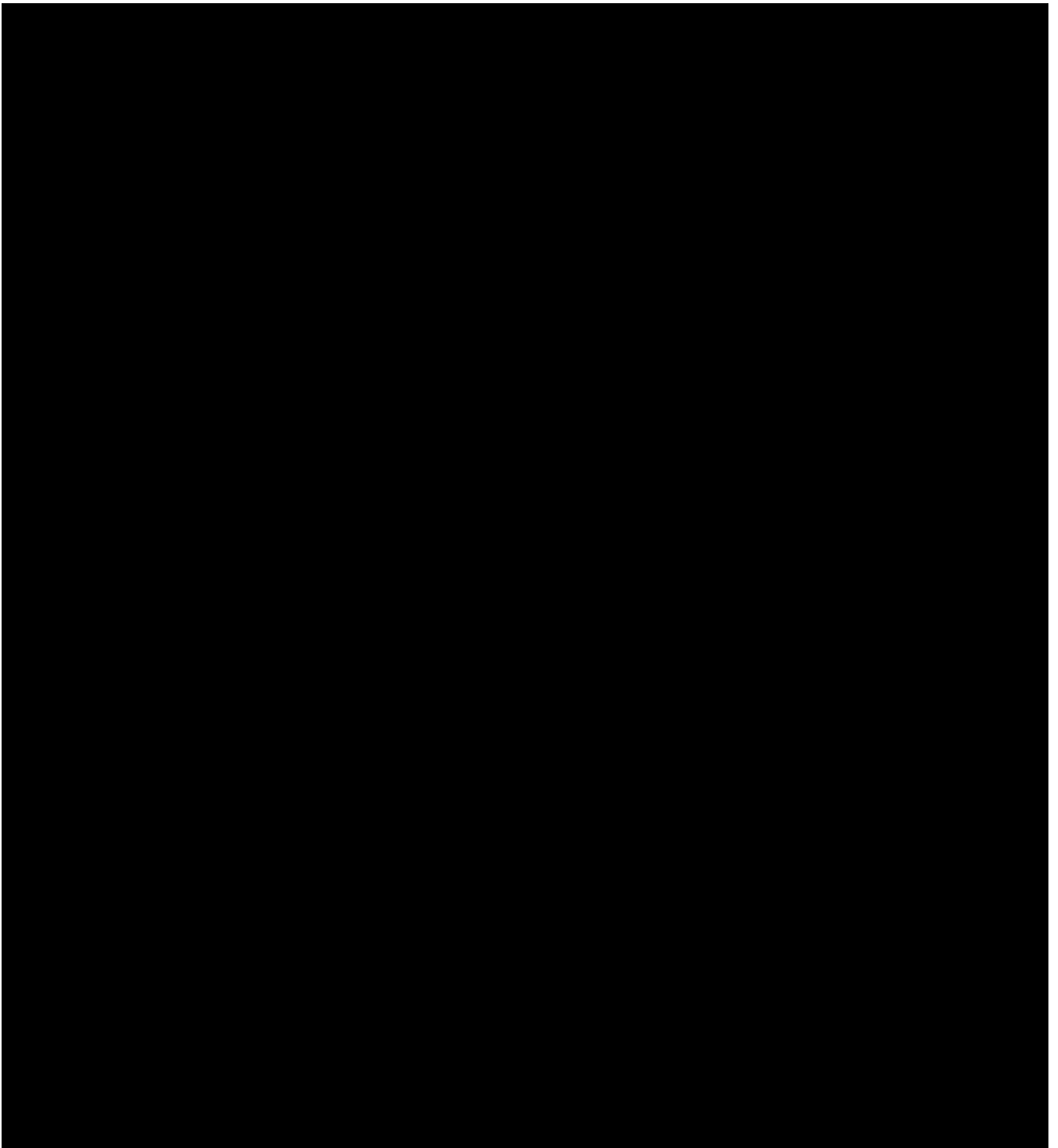
June 13, 2022

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<sup>1</sup> Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation.

**PRODUCED IN PDF AS FOLLOWS**

**ALSO PRODUCED IN NATIVE FORMAT**



BEFORE THE FEDERAL MARITIME COMMISSION

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INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.,

Complainant,

-against-

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING COMPANY  
S.A., OCEAN NETWORK EXPRESS PTE. LTD.,  
YANG MING MARINE TRANSPORT CORP., AND  
ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

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(Via Zoom Videoconference)

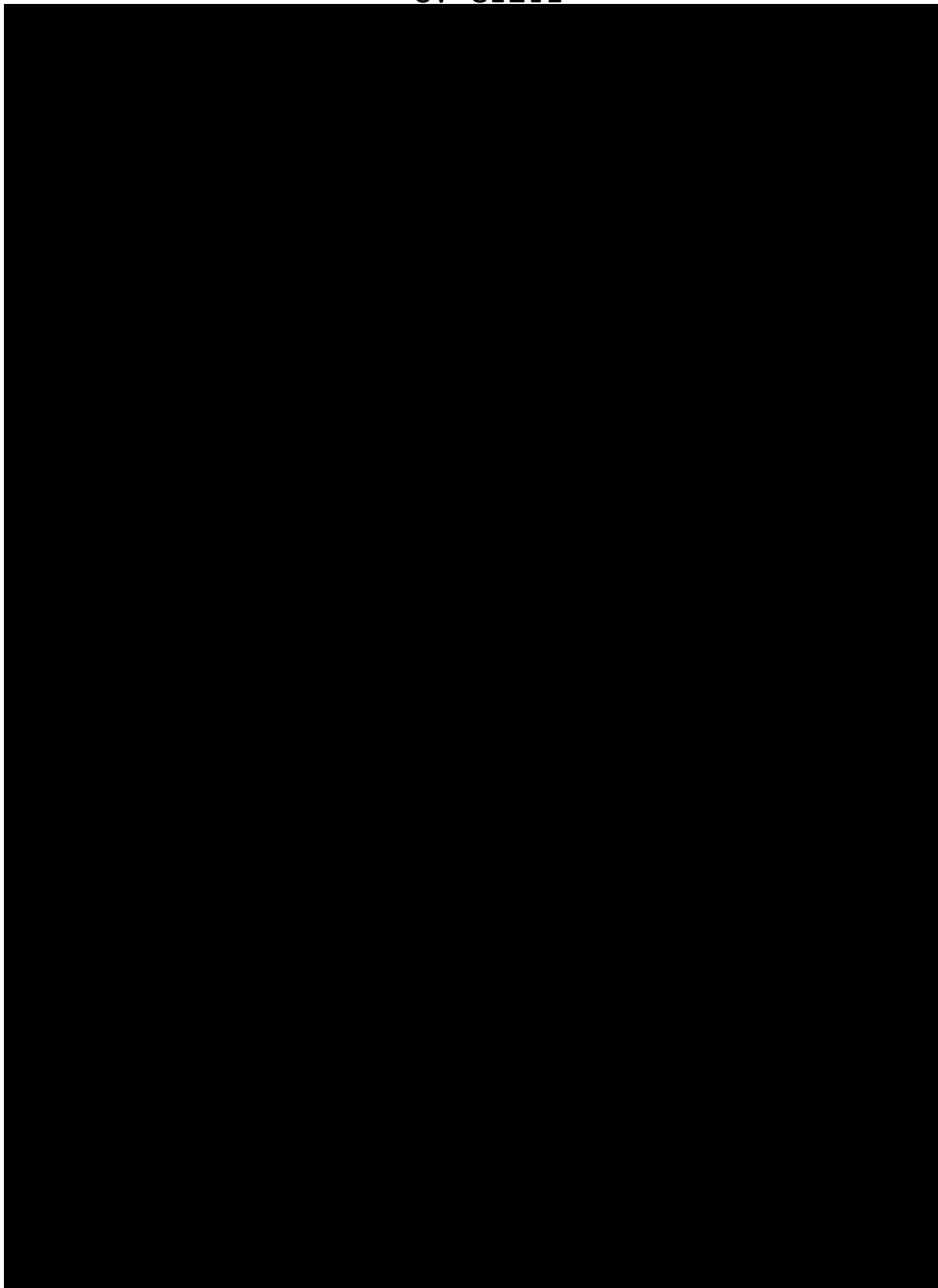
December 21, 2021

9:11 a.m.

Videoconference Deposition of  
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Public of the State of New York.

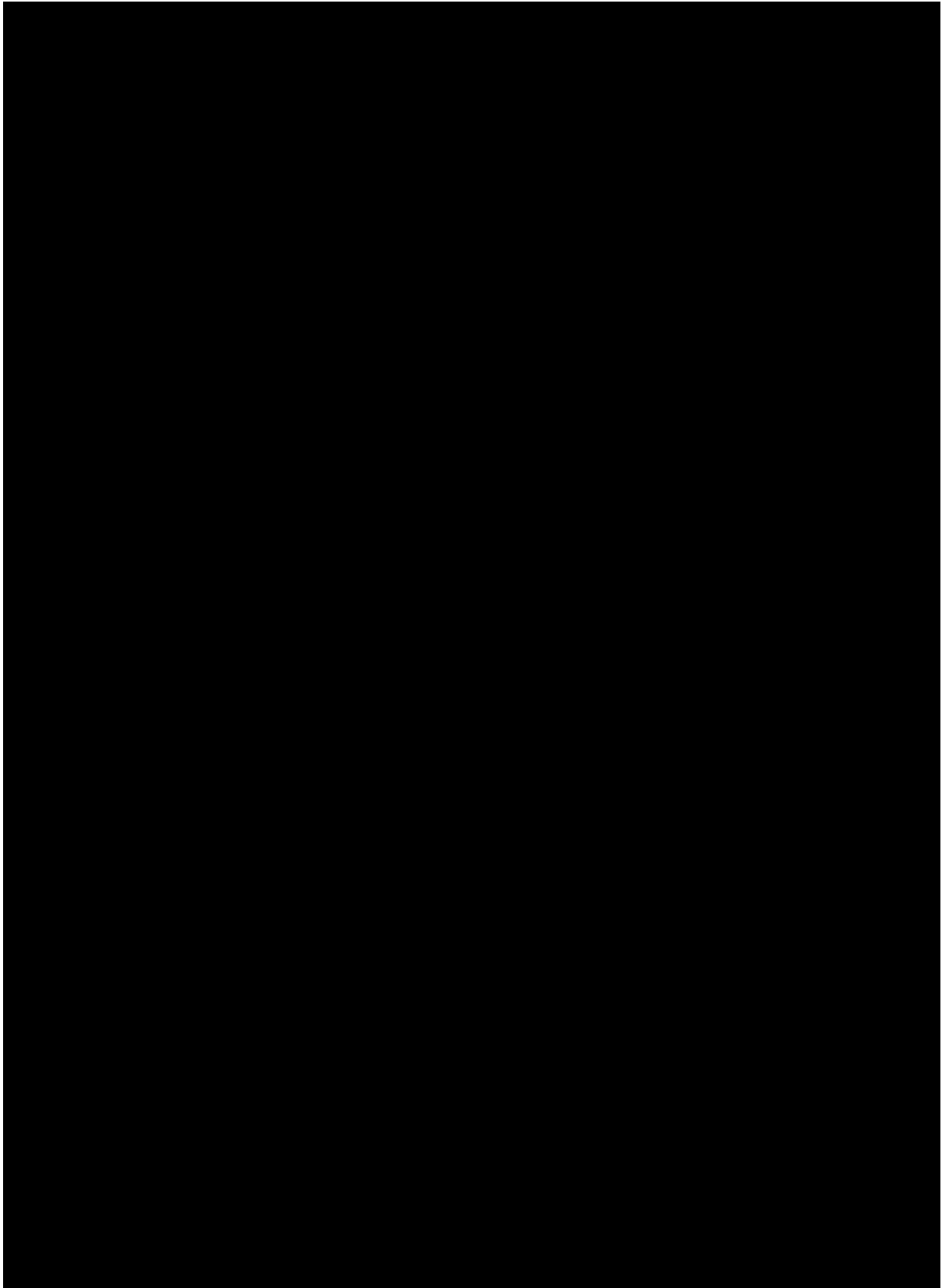
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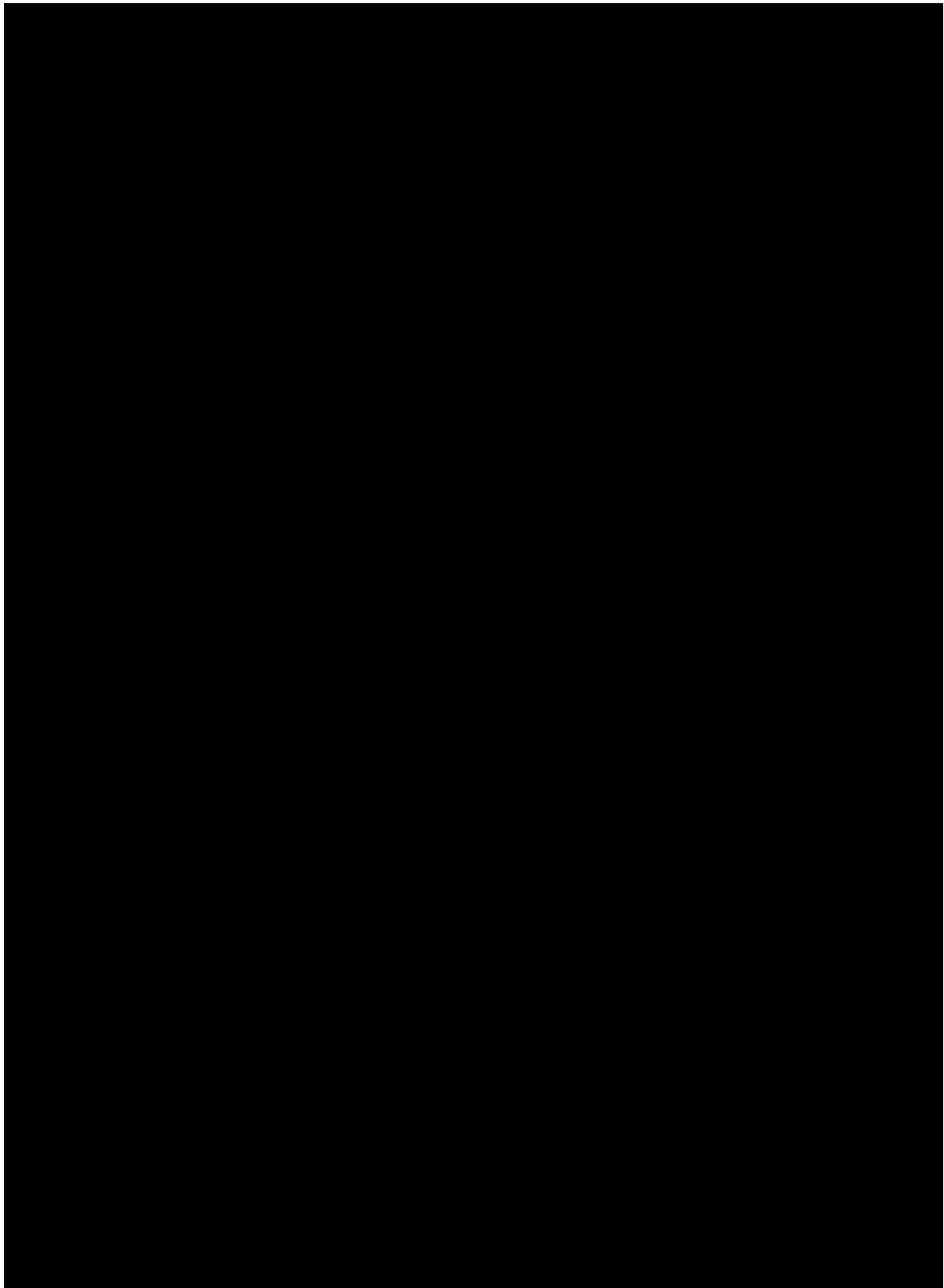
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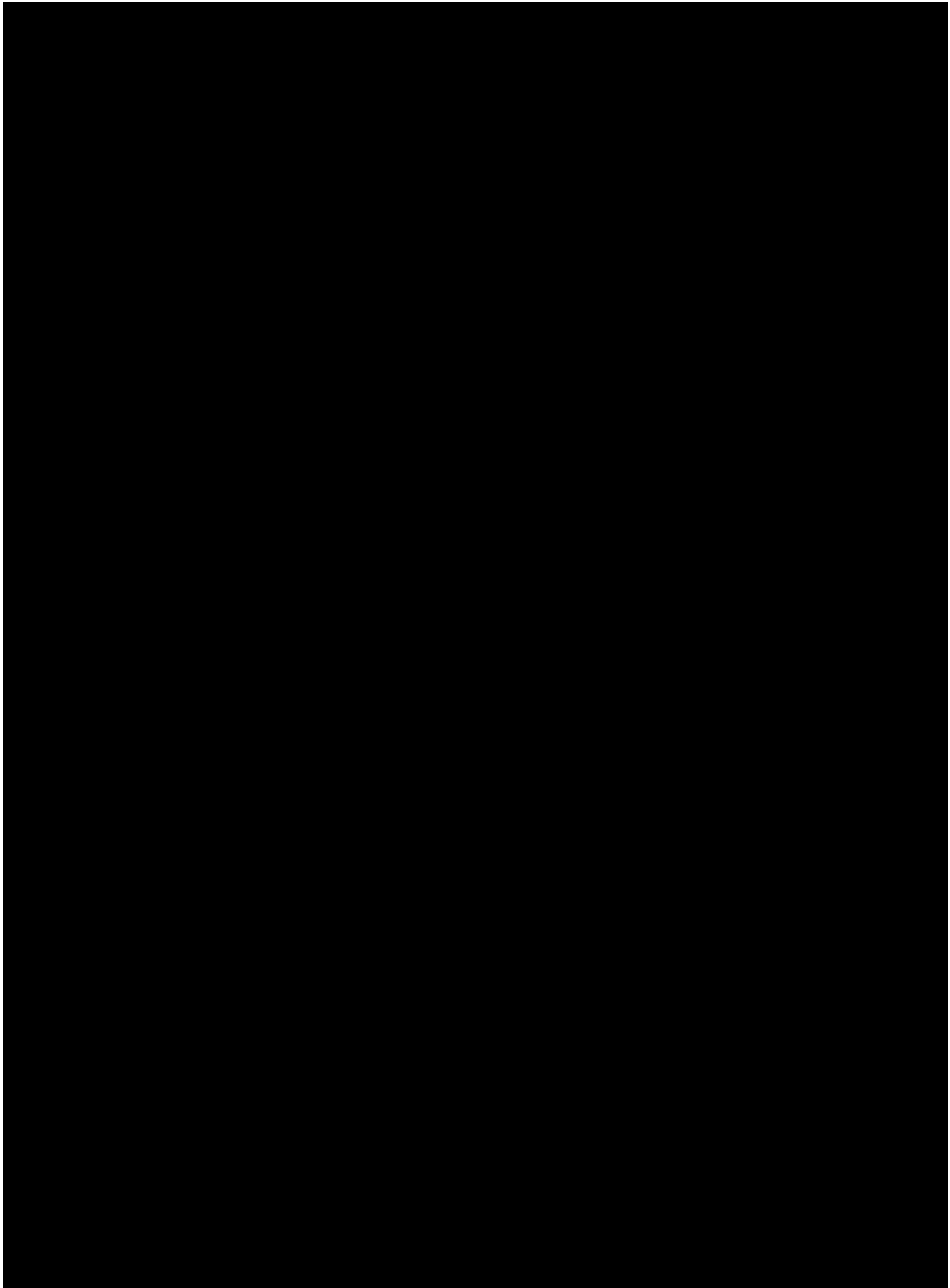
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BEFORE THE FEDERAL MARITIME COMMISSION

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INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATION, INC.,

Complainant,

- against -

Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC.; CONSOLIDATED CHASSIS  
MANAGEMENT, LLC; CMA CGM S.A.; COSCO  
SHIPPING LINES CO. LTD.; EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982;  
HAPAG-LLOYD AG; HMM, CO. LTD.; MAERSK A/S;  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;  
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI  
LINES LTD.; YANG MING MARINE TRANSPORT CORP.;  
AND ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

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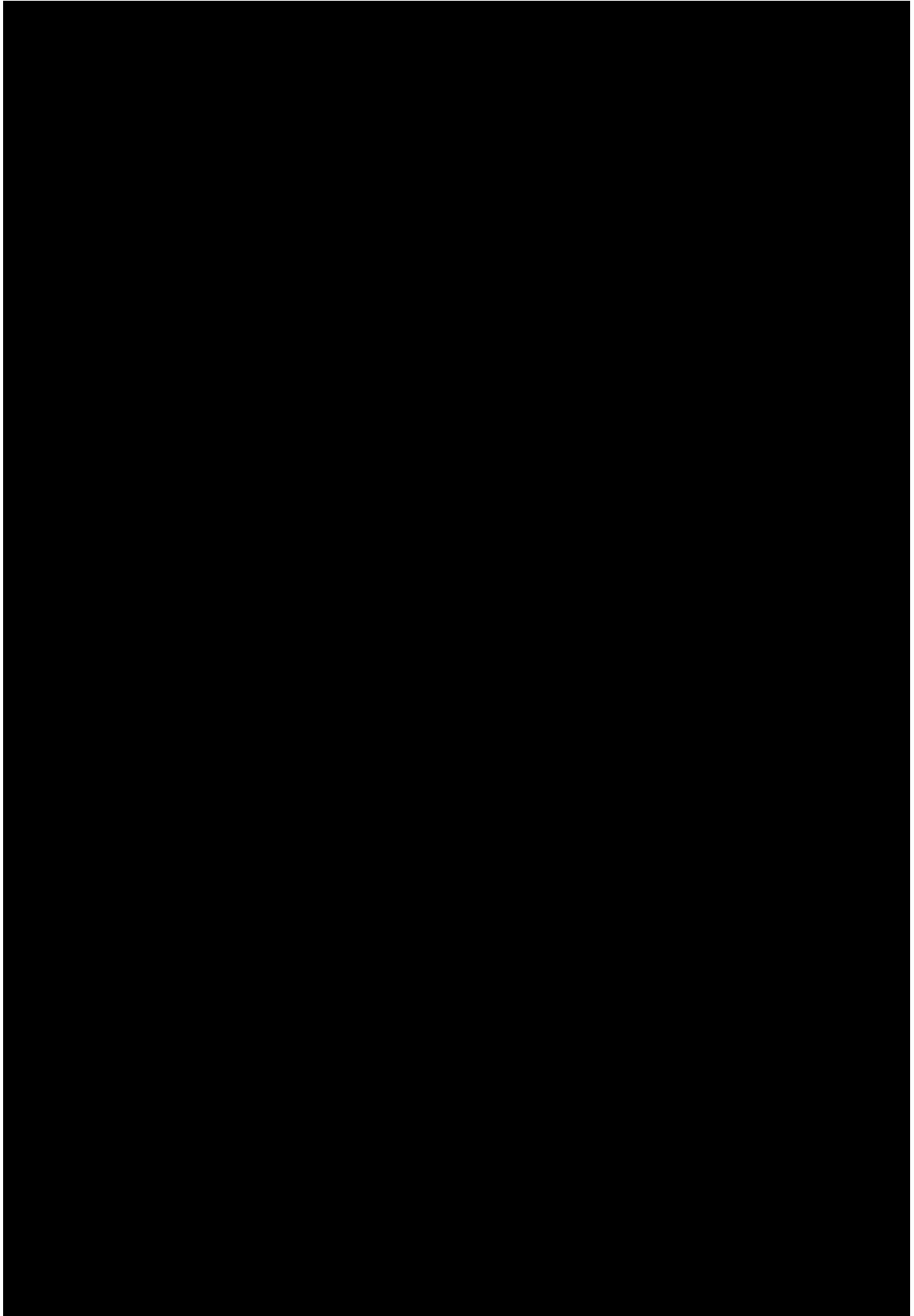
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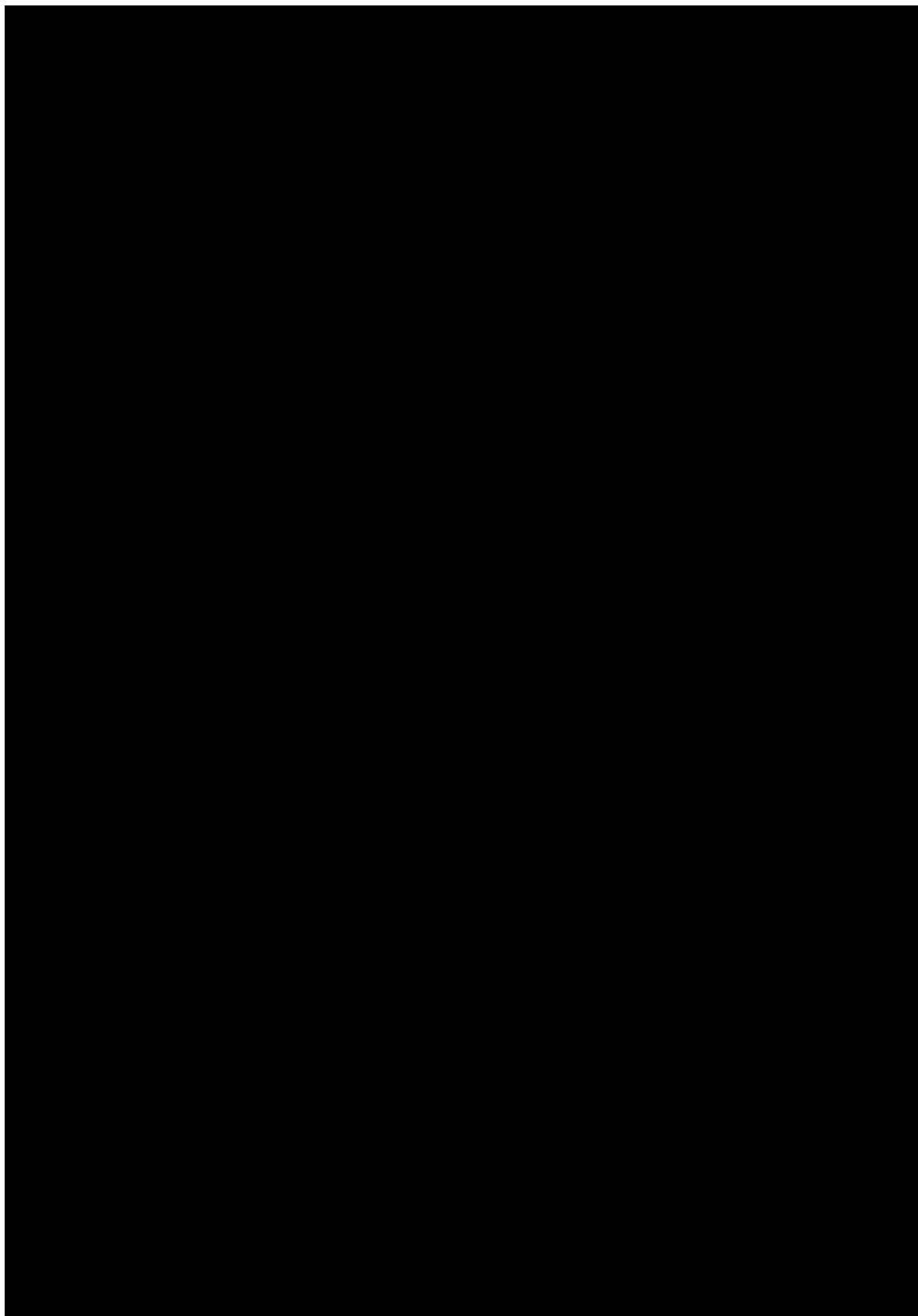
CONFIDENTIAL VIDEO-RECORDED DEPOSITION of  
MICHAEL WILSON, a witness of behalf of CONSOLIDATED  
CHASSIS MANAGEMENT, LLC, one of the Defendants in  
the above-entitled action, held at the above time  
and place, taken before Brittany Saline, a  
Professional Shorthand Reporter and Notary Public of  
the State of New York, pursuant to the Federal Rules  
of Civil Procedure, with written notice as to time  
and place thereof.

\* \* \* \*

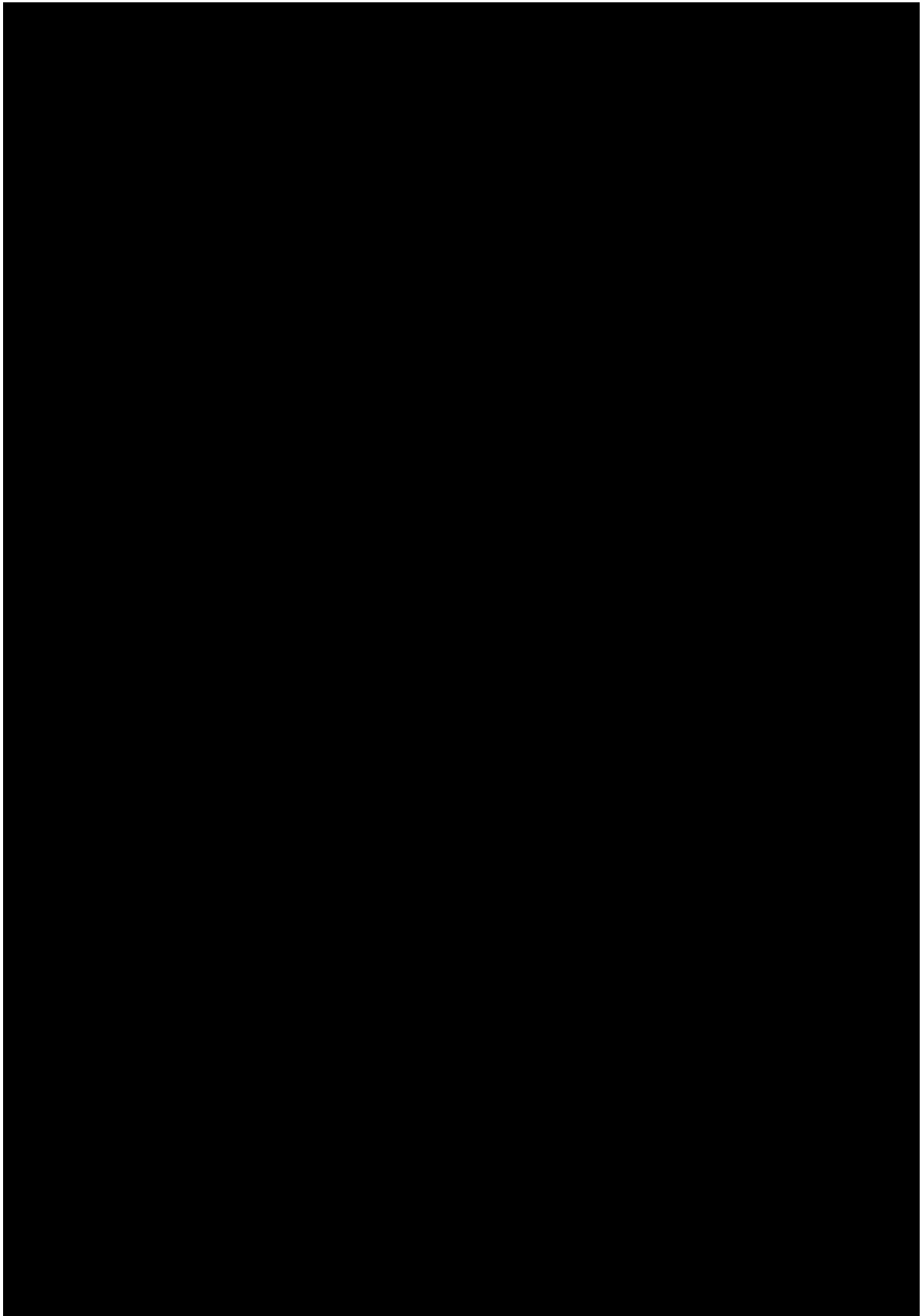
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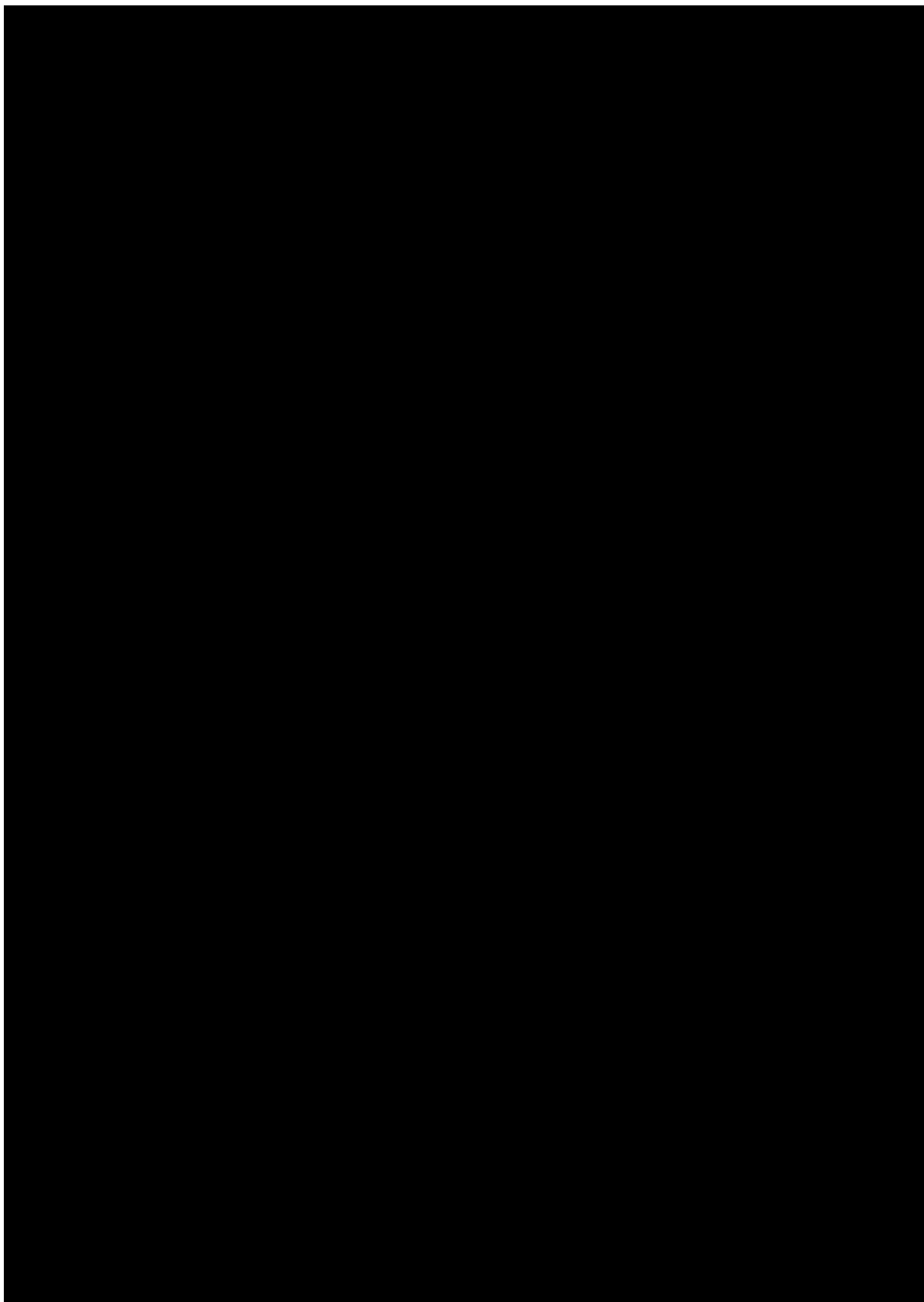
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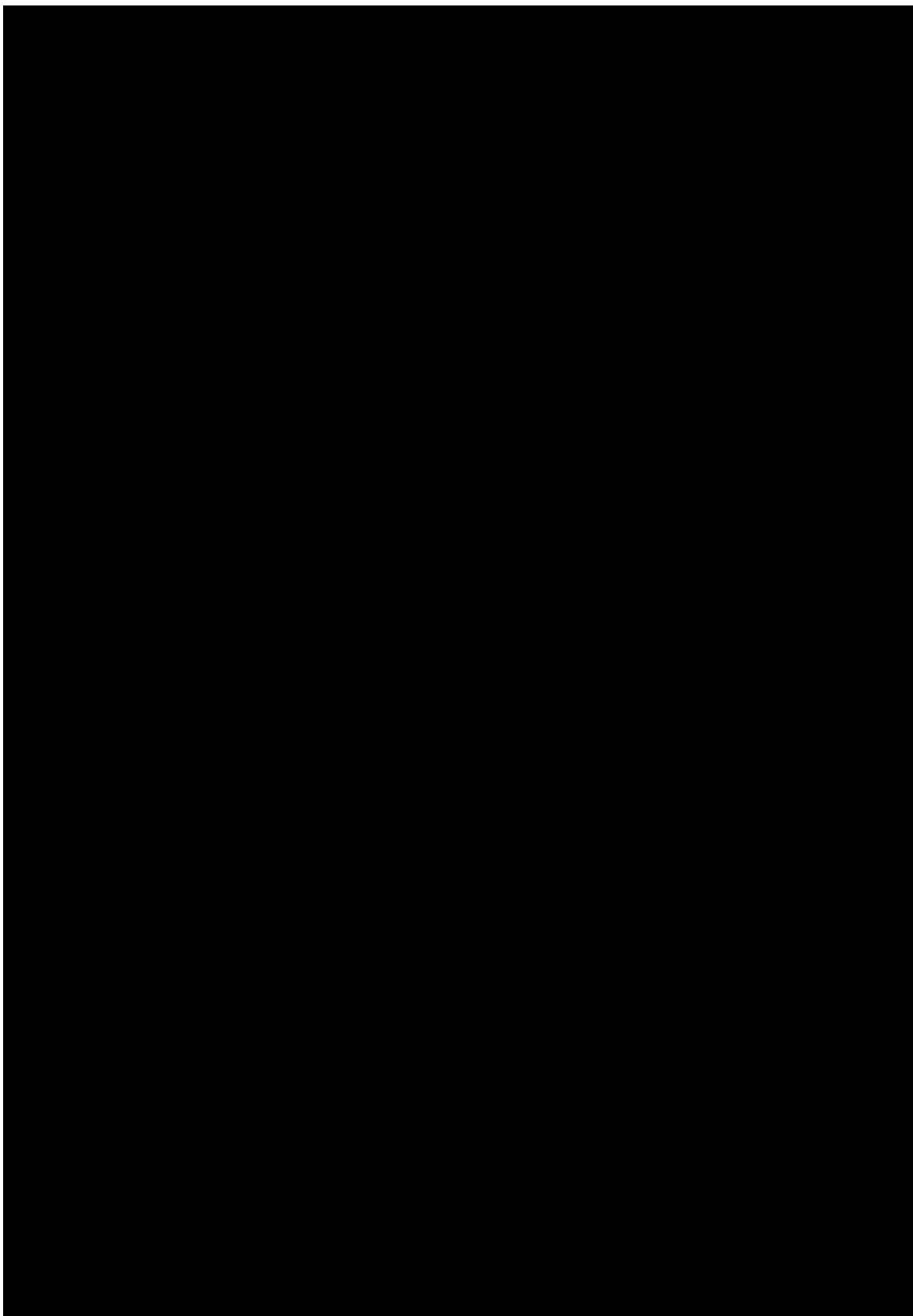
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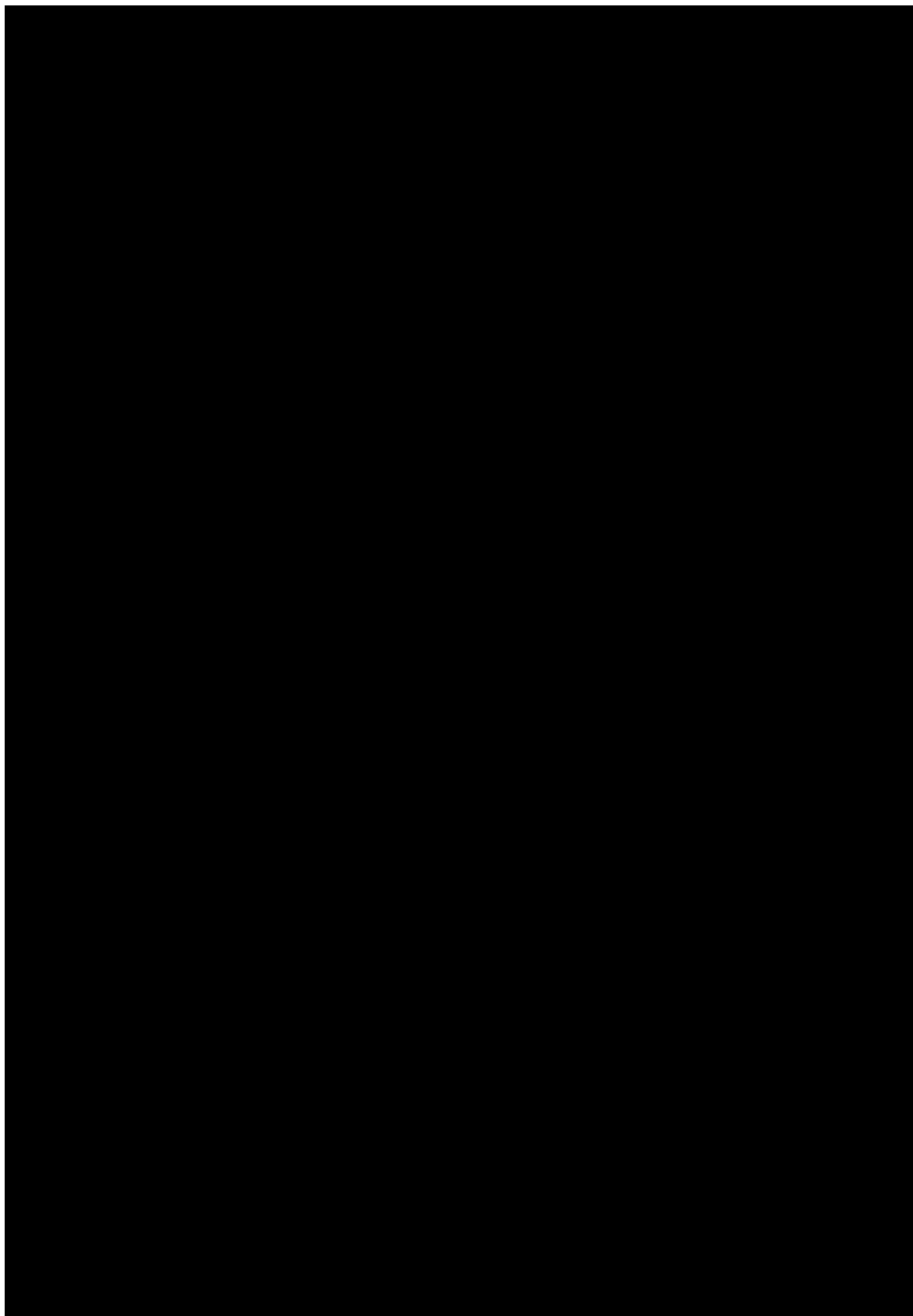
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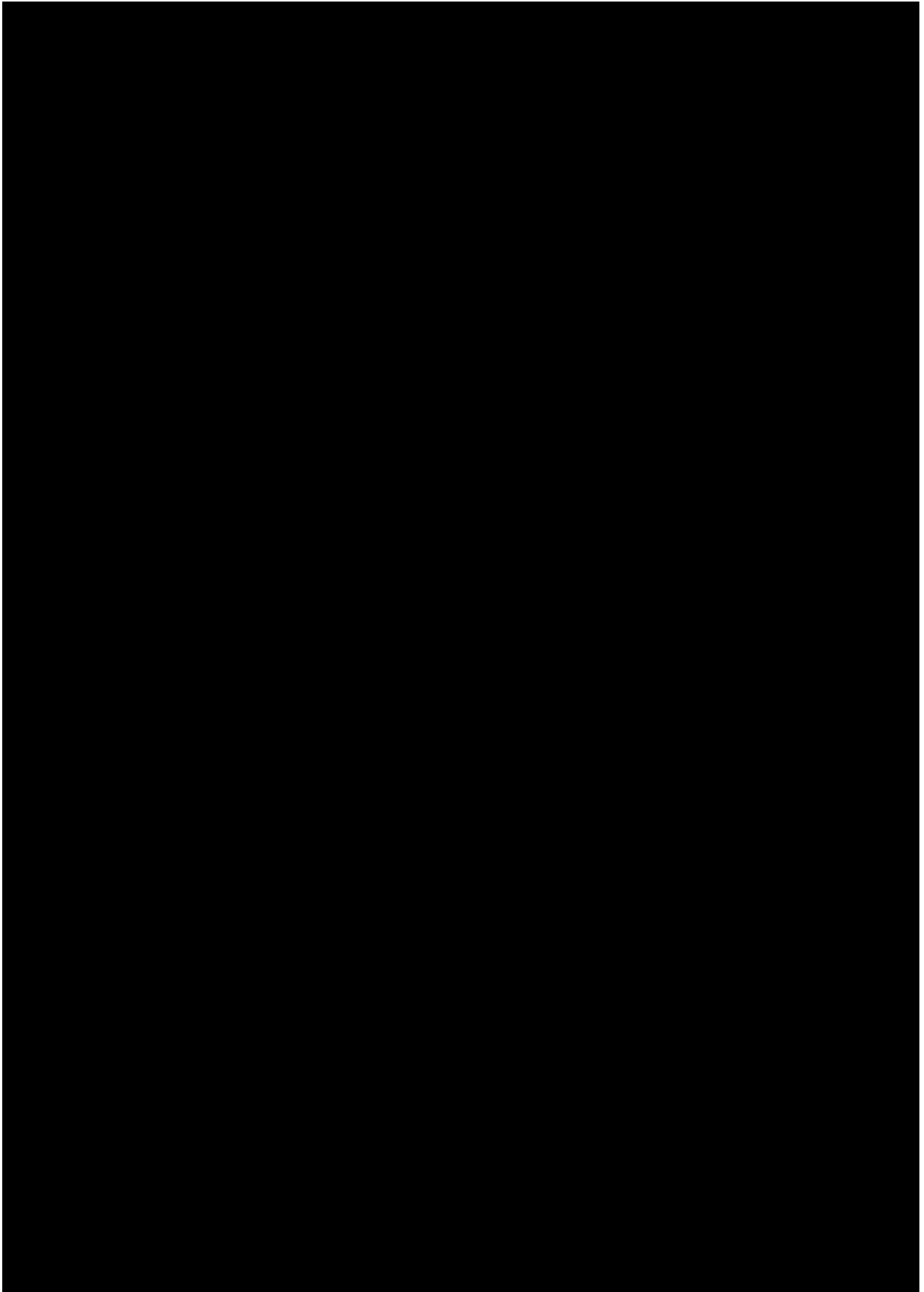
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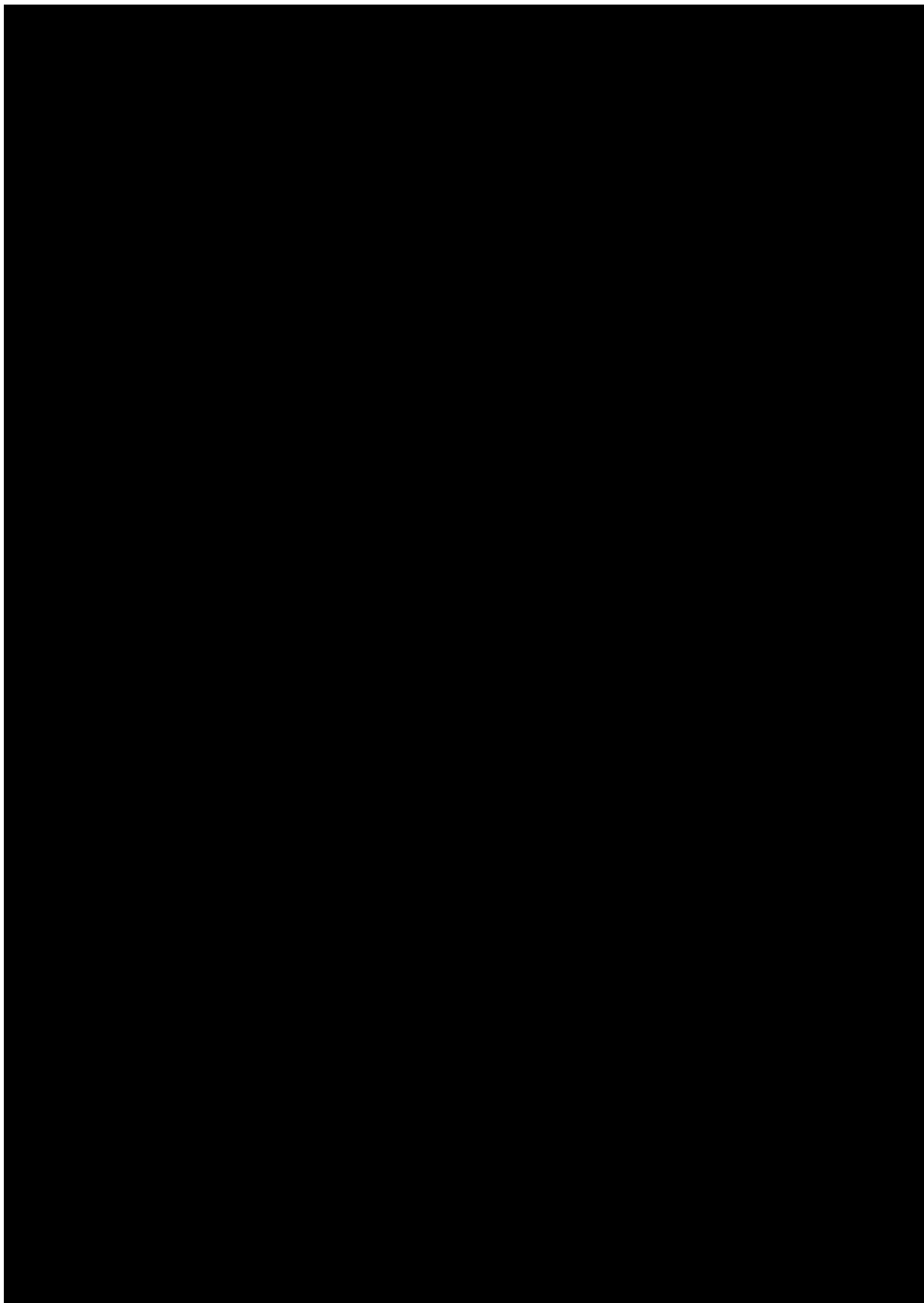
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2 UNITED STATES DISTRICT COURT  
3 BEFORE THE FEDERAL MARITIME COMMISSION  
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5 INTERMODAL MOTOR CARRIERS CONFERENCE  
6 AMERICAN TRUCKING ASSOCIATION, INC.,  
Claimant,

-against-

7 OCEAN CARRIER EQUIPMENT MANAGEMENT  
8 ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
9 SHIPPING LINES CO., LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
10 HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,  
11 OCEAN NETWORK EXPRESS PTE. LTD., WAN HAI  
LINES LTD., YANG MING MARINE TRANSPORT  
12 CORP., AND AIM INTEGRATED SHIPPING  
SERVICES,

13 Respondents.

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14 Virtual Zoom Deposition

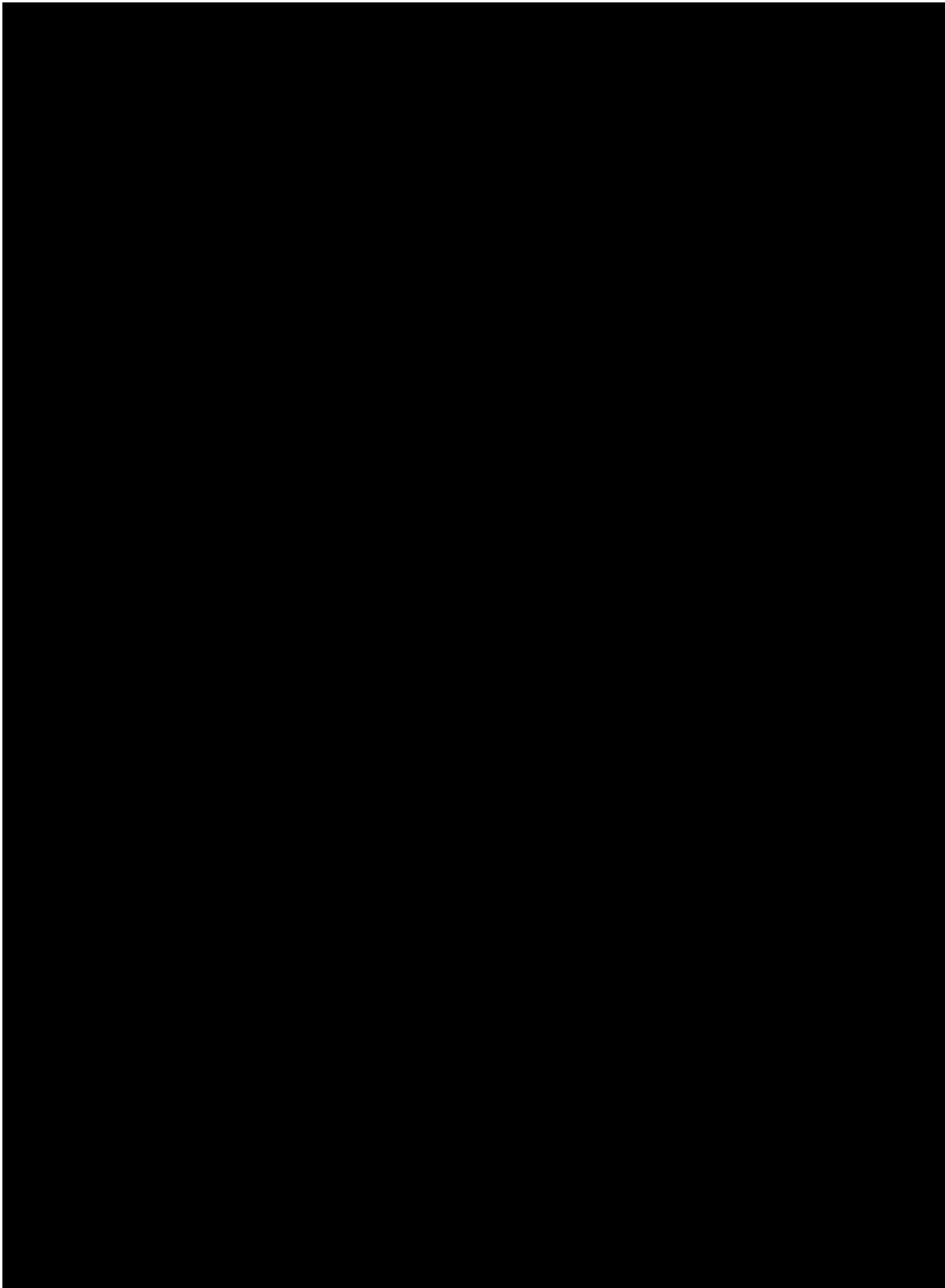
15 November 23, 2021  
16 10:00 a.m.

17 VIDEO VIRTUAL DEPOSITION of DAVE  
18 MANNING, in the above-entitled action,  
19 held at the above time and place, taken  
before Jeremy Richman, a Shorthand  
20 Reporter and Notary Public of the State of  
New York, pursuant to the Federal Rules of  
21 Civil Procedure, and stipulations between  
Counsel.

22 \* \* \*

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BEFORE THE FEDERAL MARITIME COMMISSION

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INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.,

CLAIMANTS,

-against-

FMC Docket No.:

20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA C.G.M. S.A., COSCO  
SHIPPING LINES CO., LTD., EVERGREEN LINE  
JOINT SERVICES AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,  
OCEAN NETWORK EXPRESS PTE. LTD., YANG MING  
MARINE TRANSPORT CORP. and ZIM INTEGRATED  
SHIPPING SERVICES ,

RESPONDENTS.

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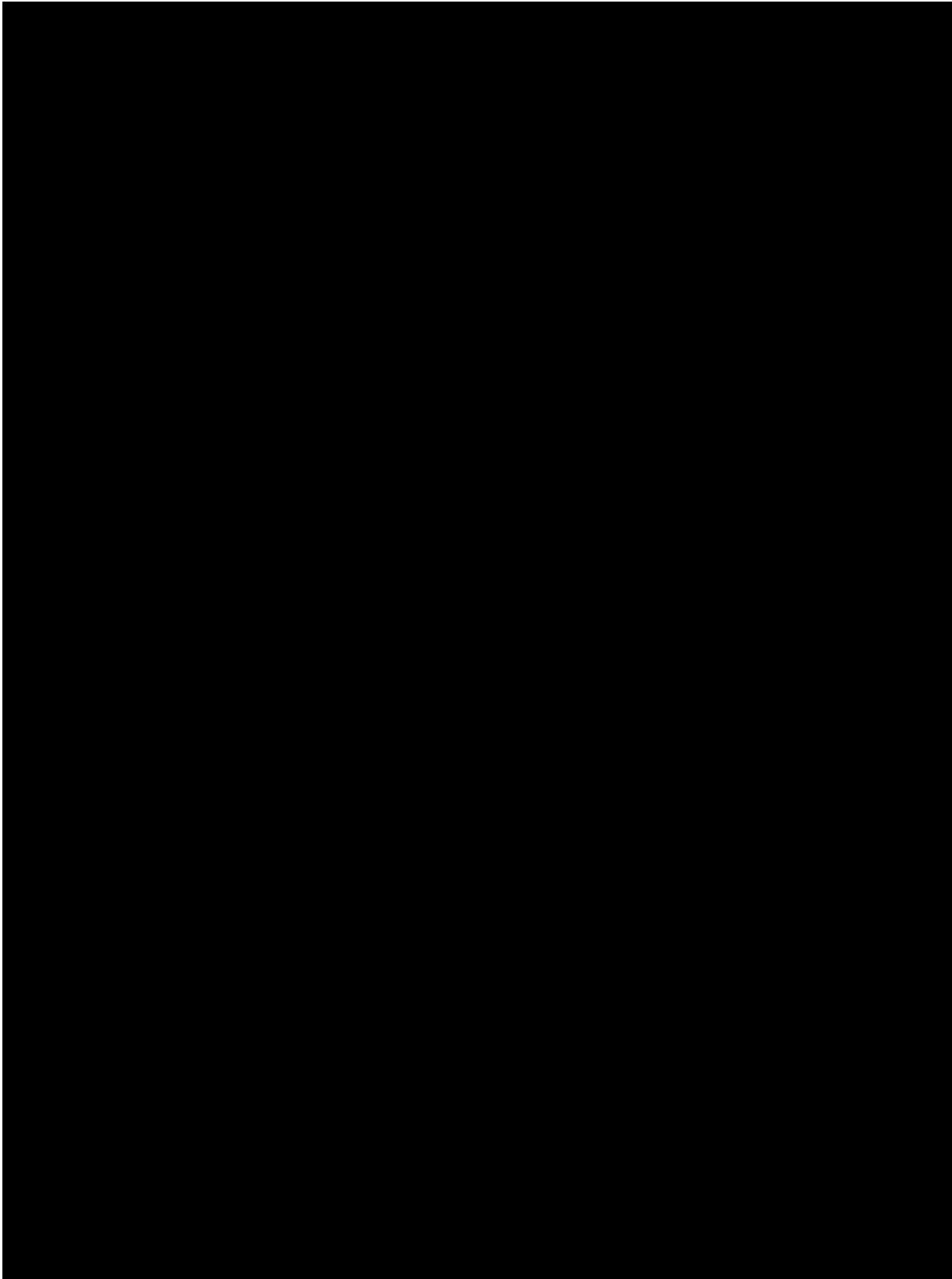
DATE: January 11, 2022

TIME: 11:00 A.M.

VIDEOCONFERENCE DEPOSITION OF SCOTT  
GEORGE, taken by the Respective Parties,  
before Rivka Trop, a Notary Public of the  
State of New York.

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BEFORE THE FEDERAL MARITIME COMMISSION

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INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATION, INC.,  
Complainant,

- against - Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC.; CONSOLIDATED CHASSIS  
MANAGEMENT, LLC; CMA CGM S.A.; COSCO  
SHIPPING LINES CO. LTD.; EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982;  
HAPAG-LLOYD AG; HMM, CO. LTD.; MAERSK A/S;  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;  
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI  
LINES LTD.; YANG MING MARINE TRANSPORT CORP.;  
AND ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

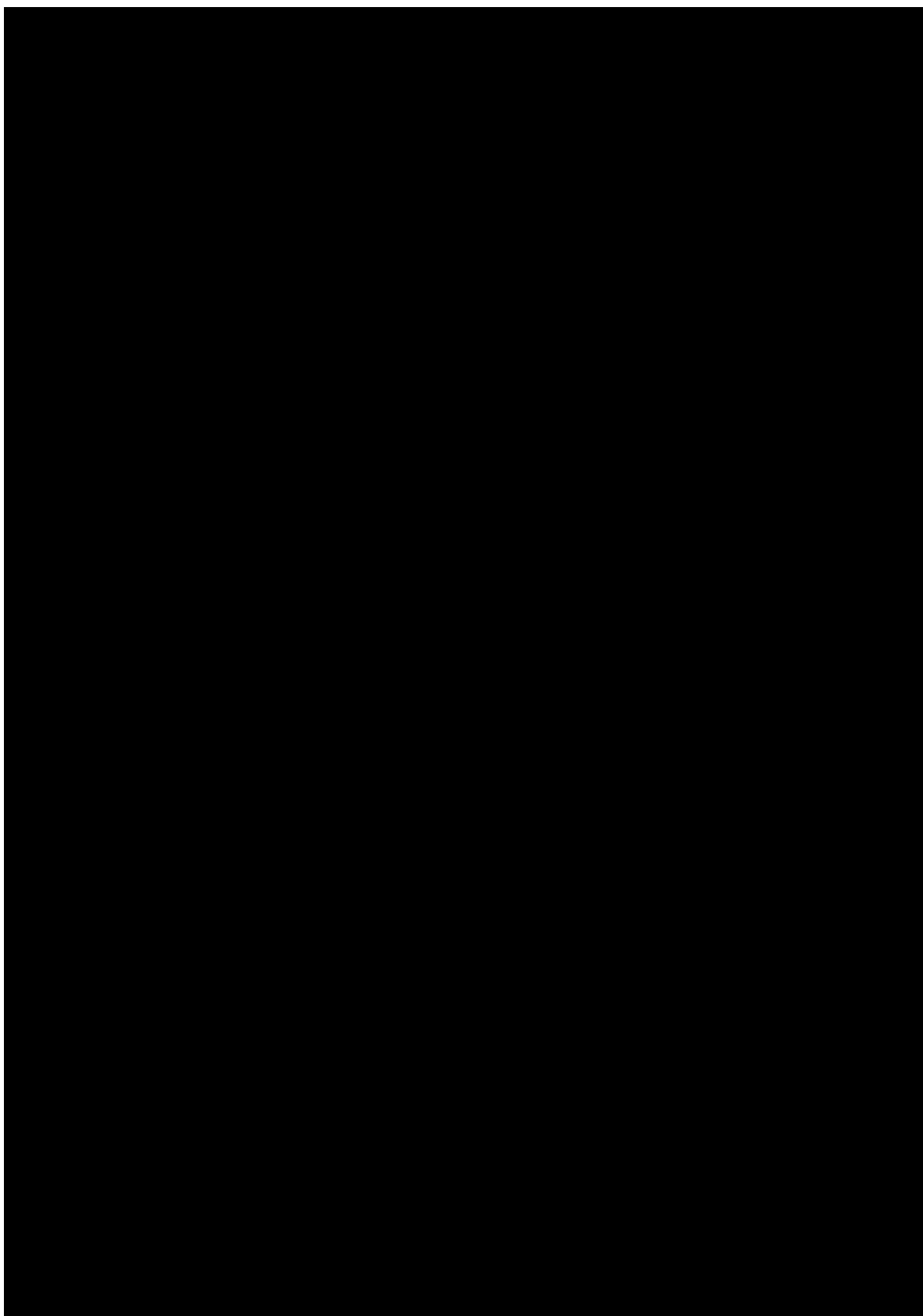
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April 8, 2022  
9:30 a.m.

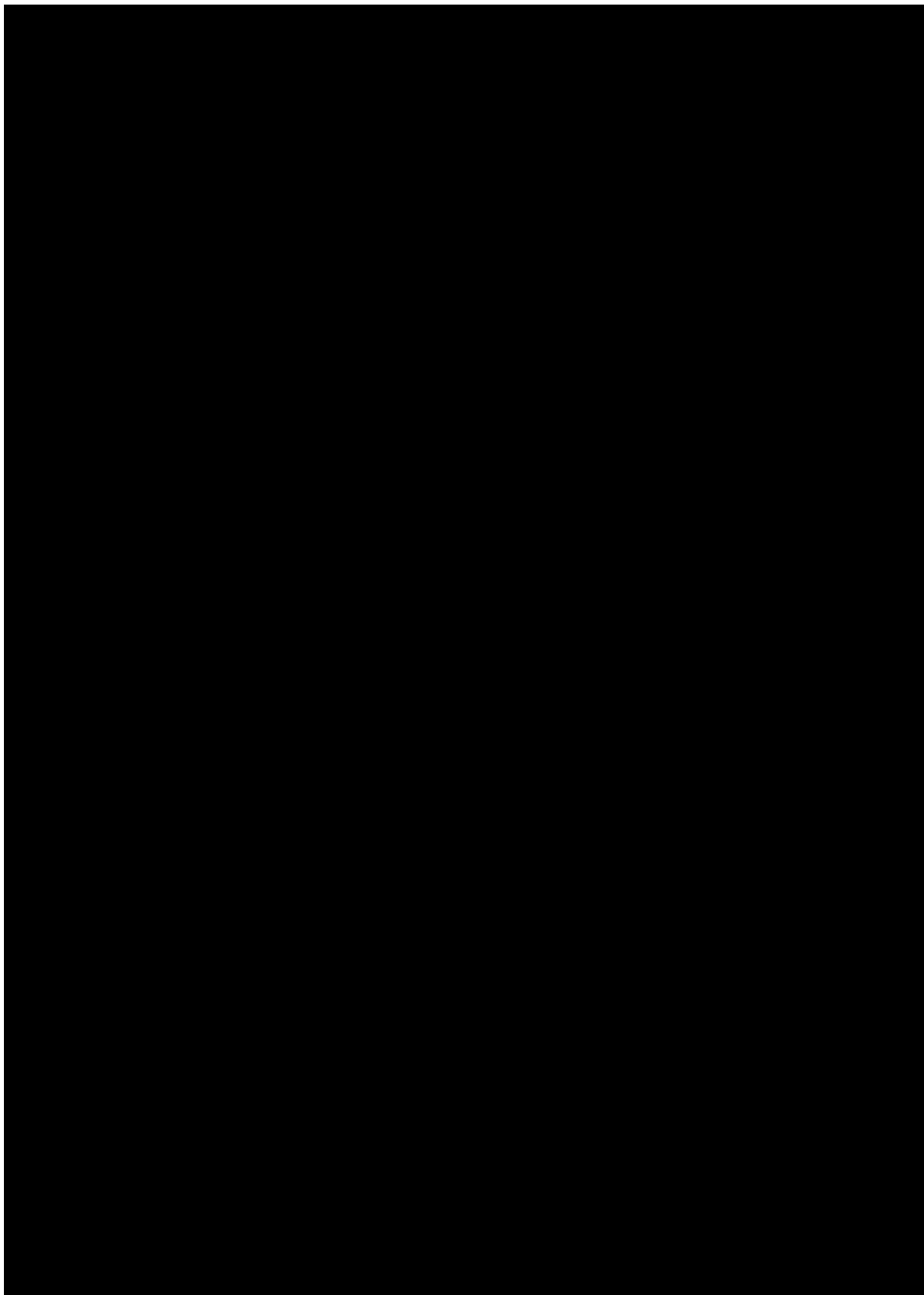
CONFIDENTIAL REMOTE DEPOSITION of  
JAMES REITZES, Ph.D., held remotely, taken before  
Sharon Pearce, RDR, CRR, CRC, NYRCR, a  
Registered Diplomat Reporter, Certified  
Realtime Reporter, Certified Realtime Captioner,  
and Notary Public of the State of New York,  
pursuant to the Federal Rules of Civil Procedure,  
with written notice as to time and place thereof.

\* \* \* \*

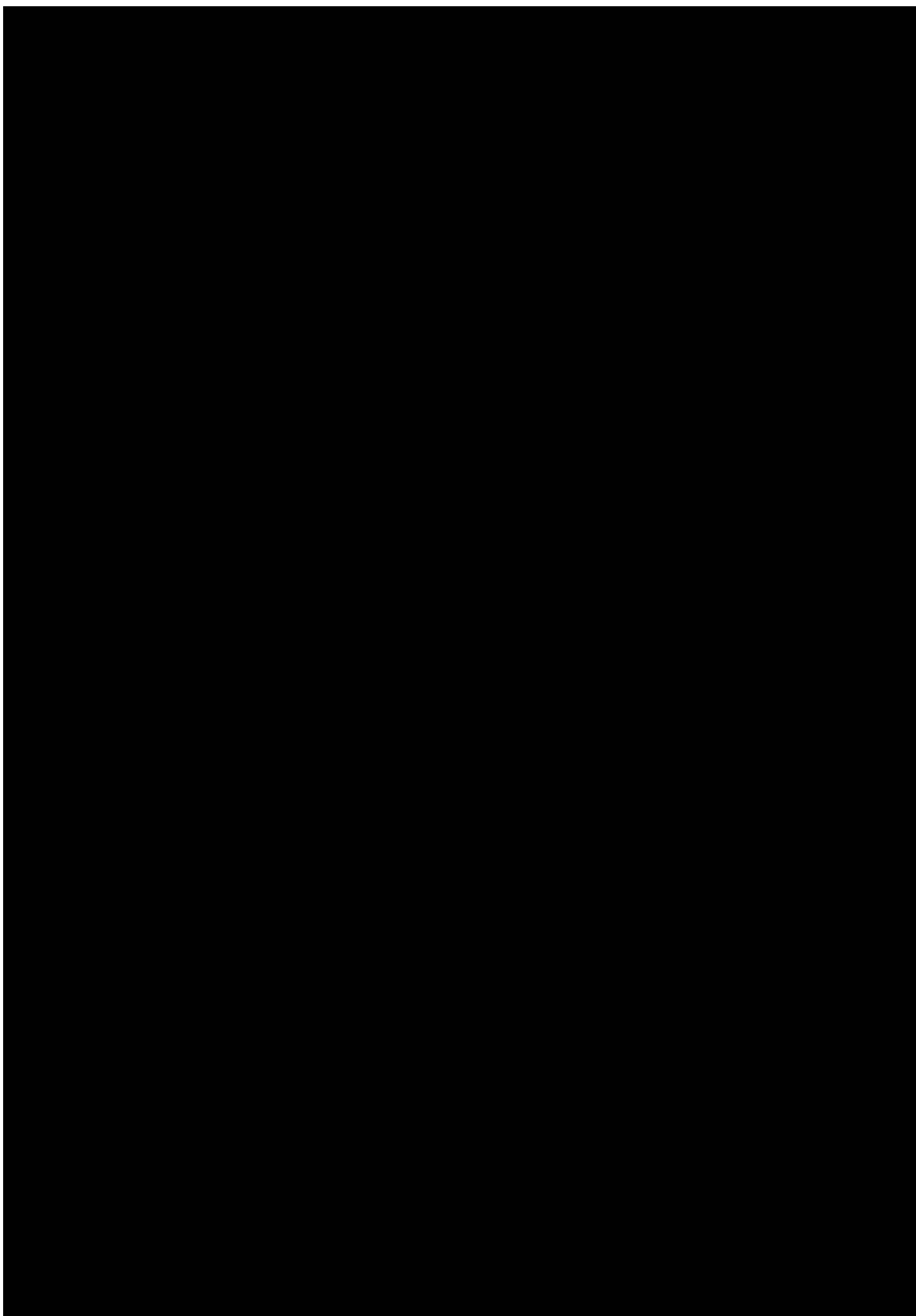
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